00019/26

In accordance with Sections 859A and 859J of the Companies Act 2006.

MR01
Particulars of a charge

Companies House

Go online to file this information: gov.uk/companieshouse

A fee is be payable with this form Please see 'How to pay' on the last page.

✓ **What this form is for**
You may use this form to register a charge created or evidenced by an instrument.

✗ **What this form is NOT for**
You may not use this form to register a charge instrument. Use

For further information, please refer to our guidance at:

WEDNESDAY
ADVQ5S1D
A18 05/02/2025
COMPANIES HOUSE
#47

This form **must be delivered to the Registrar for reg 21 days** beginning with the day after the date of creatic delivered outside of the 21 days it will be rejected unles court order extending the time for delivery.

You **must** enclose a certified copy of the instrument with this form. This will be scanned and placed on the public record. **Do not send the original.**

1 Company details

For official use

Company number	0 0 0 5 4 2 2 2
Company name in full	BURNLEY FOOTBALL & ATHLETIC COMPANY,LIMITED(THE)

→ **Filling in this form**
Please complete in typescript or in bold black capitals.

All fields are mandatory unless specified or indicated by *

2 Charge creation date

Charge creation date	d 1 5 m 0 1 y 2 0 2 5

3 Names of persons, security agents or trustees entitled to the charge

Please show the names of each of the persons, security agents or trustees entitled to the charge.

Name	Fasanara Capital Ltd (as security agent)
Name	
Name	
Name	

If there are more than four names, please supply any four of these names then tick the statement below.

☐ I confirm that there are more than four persons, security agents or trustees entitled to the charge.

MR01
Particulars of a charge

4 Brief description

Please give a short description of any land, ship, aircraft or intellectual property registered or required to be registered in the UK subject to a charge (which is not a floating charge) or fixed security included in the instrument.

Please submit only a short description If there are a number of plots of land, aircraft and/or ships, you should simply describe some of them in the text field and add a statement along the lines of, "for more details please refer to the instrument".

Please limit the description to the available space.

Brief description

Leasehold land at (1) Turf Moor, Harry Potts Way, Burnley, BB10 4BX, (2) the Leisure Centre, Harry Potts Way, Burnley, BB10 4BX and (3) Home Farm, Habergham Drive, Burnley, BB12 8UA. For more details of land charged please refer to the instrument.

5 Other charge or fixed security

Does the instrument include a charge (which is not a floating charge) or fixed security over any tangible or intangible or (in Scotland) corporeal or incorporeal property not described above? Please tick the appropriate box.

☑ **Yes**

☐ **No**

6 Floating charge

Is the instrument expressed to contain a floating charge? Please tick the appropriate box.

☑ **Yes** Continue

☐ **No** Go to **Section 7**

Is the floating charge expressed to cover all the property and undertaking of the company?

☑ **Yes**

7 Negative Pledge

Do any of the terms of the charge prohibit or restrict the company from creating further security that will rank equally with or ahead of the charge? Please tick the appropriate box.

☑ **Yes**

☐ **No**

8 Trustee statement ❶

You may tick the box if the company named in Section 1 is acting as trustee of the property or undertaking which is the subject of the charge.

☐

❶ This statement may be filed after the registration of the charge (use form MR06).

9 Authentication ❷

Enter your printed name. You do not need to include a signature.

❷ **Authentication**
This will appear on the public record.

Name

Northridge Law LLP

This form must be authenticated by a person with an interest in the charge.

MR01
Particulars of a charge

Presenter information

You do not have to give any contact information, but if you do, it will help Companies House if there is a query on the form. The contact information you give will be visible to searchers of the public record.

Contact name: Hugo Bailey
Company name: Northridge Law LLP
Address: 90 Bartholomew Close
Post town: London
County/Region: London
Postcode: EC1A 7BN
Country: United Kingdom
DX:
Telephone: 07442650118

Certificate

We will send your certificate to the presenter's address if given above or to the company's Registered Office if you have left the presenter's information blank.

Checklist

We may return forms completed incorrectly or with information missing.

Please make sure you have remembered the following:

- ☐ The company name and number match the information held on the public Register.
- ☐ You have included a certified copy of the instrument with this form.
- ☐ You have entered the date on which the charge was created.
- ☐ You have shown the names of persons entitled to the charge.
- ☐ You have ticked any appropriate boxes in Sections 3, 5, 6, 7 & 8.
- ☐ You have given a description in Section 4, if appropriate.
- ☐ You have authenticated the form.
- ☐ You have enclosed the correct fee.
- ☐ Please do not send the original instrument; it must be a certified copy.

Important information

Please note that all information on this form will appear on the public record.

£ How to pay

A fee of £24 is payable to Companies House in respect of each mortgage or charge filed on paper.

Make cheques or postal orders payable to 'Companies House.'

How to send your form

You can upload certain forms to Companies House instead of sending them by post.

If you need to post your form, you must send it to the correct address.

For more information on where to send the form visit:

gov.uk/companies-house/offices

Further information

For further information, please see the guidance notes on the website at gov.uk/companieshouse or email enquiries@companieshouse.gov.uk

This form is available in an alternative format. Please visit the forms page on our website:

gov.uk/companieshouse

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NORTHRIDGE

Dated 15 January 2025

BURNLEY FOOTBALL & ATHLETIC COMPANY, LIMITED(THE)
BURNLEY FC HOLDINGS LIMITED
LONGSIDE PROPERTIES LIMITED
BURNLEY FC WOMEN LIMITED

as Chargors

and

FASANARA CAPITAL LTD

as the Security Agent

DEBENTURE

I hereby certify this as being a true copy of the original document

Signed _____
Position SOLICITOR
Date 5 FEBRUARY 2025

I certify that, save for the material redacted pursuant to s. 859G of the Companies Act 2006, this copy is a correct copy of the original instrument.

NORTHRIDGE LAW LLP

Docusign Envelope ID: 01CE70E3-83C7-4EDF-B9F9-3968C47D0BAC

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THIS DEED is made the 15 day of January 2025

BETWEEN

(1) **BURNLEY FOOTBALL & ATHLETIC COMPANY, LIMITED(THE)**, a company incorporated in England and Wales with company number 00054222, whose registered office is at Turf Moor, Harry Potts Way, Burnley, Lancashire, England BB10 4BX (the "**Borrower**");

(2) **BURNLEY FC HOLDINGS LIMITED** a company incorporated in England and Wales with company number 08335231, whose registered office is at Turf Moor, Harry Potts Way, Burnley, Lancashire, England BB10 4BX;

(3) **LONGSIDE PROPERTIES LIMITED** incorporated and registered in England and Wales with company number 05202619 whose registered office is at Turf Moor, Harry Potts Way, Burnley, Lancashire, England BB10 4BX;

(4) **BURNLEY FC WOMEN LIMITED** incorporated and registered in England and Wales with company number 13192796 whose registered office is at Turf Moor, Harry Potts Way, Burnley, Lancashire, England BB10 4BX;

(the Borrower, Burnley FC Holdings Limited, Longside Properties Limited and Burnley FC Women Limited together, the "**Chargors**"); and

(5) **FASANARA CAPITAL LTD** (the "**Security Agent**") as security trustee for the Secured Parties (as defined in the Facility Agreement, defined below).

BACKGROUND:

(A) (1) Burnley Football & Athletic Company, Limited(The) (as Borrower), (2) Burnley FC Holdings Limited, Longside Properties Limited and Burnley FC Women Limited (as Guarantors), (3) Fasanara Securitisation S.A. (as Original Lender), (4) Fasanara Capital Ltd as Agent and Arranger, (5) Fasanara Capital Ltd as Security Agent, and (5) Tifosy Limited (as Co-Arranger) entered into a facility agreement dated [15] January 2025 pursuant to which the Lender made available to the Borrower a term loan facilities in a maximum aggregate principal amount of £40,000,000 (the "**Facility Agreement**").

(B) The Chargors enter into this Deed in connection with the Facility Agreement.

(C) Under this Deed, the Chargors provide security to the Security Agent for the present and future obligations and liabilities of each Obligor (as defined in the Facility Agreement) to any Secured Party (as defined in the Facility Agreement) under each Finance Document (as defined in the Facility Agreement).

(D) It is intended that this document takes effect as a deed notwithstanding the fact that a party may only execute this document under hand.

IT IS AGREED as follows:

1 DEFINITIONS AND INTERPRETATION

1.1 Definitions

Terms used but not defined in this Deed have the meaning given to them in the Facility Agreement and in addition the following terms have the meaning given to them below:

Act	means the Law of Property Act 1925.
Equipment	means all present and future equipment, plant, machinery, tools, vehicles, furniture, fittings, installations and apparatus and other tangible moveable property owned by a Chargor or in which it has an interest, including any part of it and all spare parts, replacements, modifications and additions.
Investments	means: (a) all shares in any member of the Group (other than itself) owned by a Chargor or held by any nominee or trustee on its behalf; and (b) all other shares, stocks, debentures, bonds or other securities or investments owned by a Chargor or held by any nominee or trustee on its behalf.
Mortgaged Property	means all freehold or leasehold property included in the definition of Security Asset.
Party	means a party to this Deed.
Receiver	means a receiver or receiver and manager or administrative receiver, in each case appointed under this Deed.
Relevant Contract	means all agreements in which a Chargor has an interest from time to time, including but not limited to any sponsorship agreements, including in each case all rights of the Chargor thereunder and any monies paid or payable to the Chargor in respect of or pursuant to such agreements.
Secured Liabilities	means all present and future obligations and liabilities (whether actual or contingent and whether owed jointly or severally or in any other capacity whatsoever) of each Obligor to any Secured Party under each Finance Document.
Security Asset	means any asset of a Chargor which is, or is expressed to be, subject to any Security created by this Deed.
Security Period	means the period beginning on the date of this Deed and ending on the date on which all the Secured Liabilities have been unconditionally and irrevocably paid and discharged in full.
Velocity Loans	means the loans referred to in paragraphs (d) and (e) of the definition of "Permitted Loan" under the Facility Agreement.

1.2 Construction

1.2.1 The provisions of clause 1.2 *(Construction)* of the Facility Agreement apply to this Deed as though they were set out in full in this Deed except that references to the Facility Agreement will be construed as references to this Deed.

1.2.2 Unless a contrary indication appears, a reference in this Deed to:

(a) a Finance Document, or any other agreement or instrument, is a reference to that Finance Document or other agreement or instrument as amended, novated, supplemented, extended or restated;

(b) any **rights** in respect of an asset includes:

(i) all amounts and proceeds paid or payable;

(ii) all rights to make any demand or claim; and

(iii) all powers, remedies, causes of action, security, guarantees and indemnities,

in each case in respect of or derived from that asset;

(c) any **share**, **stock**, **debenture**, **bond** or other **security** or **investment** includes:

(i) any dividend, interest or other distribution paid or payable; and

(ii) any right, money or property accruing or offered at any time by way of redemption, substitution, exchange, bonus or preference, under option rights or otherwise,

in each case in respect of that share, stock, debenture, bond or other security or investment; and

(d) the term **this Security** means any Security created by this Deed.

1.2.3 Any covenant of a Chargor under this Deed (other than a payment obligation which has been discharged) remains in force during the Security Period.

1.2.4 The terms of the other Finance Documents and of any other agreement or instrument between any Parties in relation to any Finance Document are incorporated in this Deed to the extent required to ensure that any purported disposition, or any agreement for the disposition, of any freehold or leasehold property contained in this Deed is a valid disposition in accordance with section 2(1) of the Law of Property (Miscellaneous Provisions) Act 1989.

1.2.5 If the Security Agent considers that an amount paid to a Secured Party under a Finance Document is capable of being avoided or otherwise set aside on the liquidation or administration of the payer or otherwise, then that amount will not be considered to have been irrevocably paid for the purposes of this Deed.

1.2.6 Unless the context otherwise requires, a reference to a Security Asset includes the proceeds of any disposal of that Security Asset.

1.3 Third party rights

1.3.1 Unless expressly provided to the contrary in a Finance Document, a person who is not a Party has no right under the Contracts (Rights of Third Parties) Act 1999 to enforce or to enjoy the benefit of any term of this Deed.

1.3.2 Notwithstanding any term of any Finance Document, the consent of any person who is not a Party is not required to rescind or vary this Deed at any time.

1.3.3 Any Receiver may enforce and enjoy the benefit of any Clause which expressly confers rights on it, subject to paragraph (b) above and the provisions of the Contracts (Rights of Third Parties) Act 1999.

1.4 Intercreditor Deed

This Deed is subject to the terms of the Intercreditor Deed. In the event of any conflict or inconsistency between the provisions of this Deed and the provisions of the Intercreditor Deed, the Intercreditor Deed shall prevail.

1.5 Central Funds Financing

The Borrower and the Security Agent agree and acknowledge that the Security created by this Deed does not create, and nor does it intend to create, any Security over the Central Funds transferred or assigned pursuant to the Central Funds Financing Agreement entered into by the Borrower on or around the date of this Deed and, therefore, such Central Funds do not comprise Security Assets and are not subject to any of the provisions of this Deed save to the extent that the Borrower re-acquires (or is entitled to re-acquire) any right, title, benefit or interest to those Central Funds in accordance with the terms of such Central Funds Financing Agreement and/or any connected re-assignment].

2 CREATION OF SECURITY

2.1 General

2.1.1 Each Chargor must pay or discharge the Secured Liabilities in the manner provided for in the Finance Documents.

2.1.2 All the security created under this Deed:

(a) is created in favour of the Security Agent;

(b) is created over present and future assets of the Chargor;

(c) is security for the payment of all the Secured Liabilities; and

(d) is made with full title guarantee in accordance with the Law of Property (Miscellaneous Provisions) Act 1994.

2.1.3 The Security Agent holds the benefit of this Deed and this Security on trust for the Secured Parties.

2.2 Land

2.2.1 Each Chargor charges:

(a) by way of a first legal mortgage all estates or interests in any freehold or leasehold property now owned by it; this includes the real property (if any) specified in Schedule 2 *(Real Property)*;

(b) to the extent that they are not the subject of a mortgage under paragraph (i) above, by way of a first fixed charge all estates or interests in any freehold or leasehold property now or subsequently owned by it; and

(c) the benefit of all other contracts, guarantees, appointments and warranties relating to each Mortgaged Property and other documents to which that Chargor is a party or which are in its favour or of which it has the benefit relating to any letting, development, sale, purchase, use or the operation of any Mortgaged Property or otherwise relating to any Mortgaged Property (including, in each case, but without limitation, the right to demand and receive all monies whatever payable to or for its benefit under or arising from any of them, all remedies provided for in any of them or available at law or in equity in relation to any of them, the right to compel performance of any of them and all other rights, interests and benefits whatever accruing to or for its benefit arising from any of them).

2.2.2 A reference in this Clause 2 to a mortgage or charge of any freehold or leasehold property includes:

(a) all buildings, fixtures, fittings and fixed plant and machinery on that property;

(b) the benefit of any covenants for title given or entered into by any predecessor in title of a Chargor in respect of that property or any moneys paid or payable in respect of those covenants;

(c) the proceeds of the sale of any part of that Mortgaged Property and any other monies paid or payable in respect of or in connection with that Mortgaged Property; and

(d) all rights under any licence, agreement for sale or agreement for lease in respect of that Mortgaged Property.

2.3 Investments

Each Chargor charges by way of a first fixed charge its interest in all its Investments.

2.4 Plant and machinery

To the extent that they are not the subject of a mortgage or a first fixed charge under Clause 2.2 *(Land)*, each Chargor charges by way of a first fixed charge all plant and machinery owned by that Chargor and its interest in any plant or machinery in its possession.

2.5 Bank accounts and credit balances

2.5.1 Each Chargor charges by way of a first fixed charge all of its rights in respect of any account it has with any person, any amount standing to the credit of any such account and the debt represented by it, together with all other rights and benefits accruing to or arising in connection with each account (including, but not limited to, entitlements to interest).

2.5.2 The Borrower charges by way of a first fixed charge all of its rights in respect of the Central Funds Account, any amount standing to the credit of the Central Funds Account and the debt represented by it.

2.6 Book debts etc.

2.6.1 Each Chargor assigns absolutely, subject to a proviso for re-assignment on redemption, all of its rights and interests:

(a) to the extent any Intra-Group Loans are documented, under each Intra-Group Loan Agreement;

(b) in respect of all Intra-Group Loans;

(c) to the extent any Velocity Loans are documented, under each document evidencing a Velocity Loan; and

(d) in respect of the Velocity Loans.

2.6.2 Each Chargor charges by way of a first fixed charge:

(a) all present and future book and other debts, and monetary claims due or owing to it;

(b) the benefit of all security, guarantees and other rights of any nature in relation to any item under this Clause 2.6; and

(c) to the extent not effectively assigned under Clause 2.6.1 above all of its rights and interests listed under Clause 2.6.1 above.

2.7 Insurances

2.7.1 Each Chargor assigns absolutely, subject to a proviso for re-assignment on redemption, all of its rights under any contract or policy of insurance taken out by it or on its behalf or in which it has an interest (together, the **"Insurance Rights"**).

2.7.2 To the extent that they have not been effectively assigned under paragraph (a) above, each Chargor charges by way of a first fixed charge all of its Insurance Rights.

2.8 Other contracts

2.8.1 Each Chargor assigns absolutely, subject to a proviso for re-assignment on redemption, all of its rights:

(a) under each Relevant Contract; and

(b) under any document, agreement or instrument to which it and any nominee or trustee is party in respect of an Investment.

(c) charges by way of a first fixed charge all of its rights under any other document, agreement or instrument to which it is a party except to the extent that it is subject to any fixed security created under any other term of this Clause 2.8.

2.8.2 Each Chargor charges by way of a first fixed charge all of its rights:

(a) under any other document, agreement or instrument to which it is a party except to the extent that it is subject to any fixed security created under any other term of this Clause 2.8; and

(b) to the extent that they have not been effectively assigned under paragraph (a) above, each Chargor charges by way of a first fixed charge all of its rights listed under paragraph (a) above.

2.9 Miscellaneous

Each Chargor charges by way of first fixed charge:

2.9.1 its present and future goodwill;

2.9.2 all the Equipment;

2.9.3 the benefit of any Authorisation (statutory or otherwise) held in connection with its use of any Security Asset;

2.9.4 the right to recover and receive compensation which may be payable to it in respect of any Authorisation referred to in paragraph (c) above;

2.9.5 its uncalled capital;

2.9.6 its Intellectual Property; and

2.9.7 the benefit of all rights in relation to any item under paragraphs (a) to (f) above.

2.10 Floating charge

2.10.1 Each Chargor charges by way of a first floating charge all its assets not otherwise effectively mortgaged, charged or assigned by way of fixed mortgage, fixed charge or assignment under this Clause 2.

2.10.2 Except as provided below, the Security Agent may by notice to a Chargor convert the floating charge created by this Clause 2.10 into a fixed charge (as regards any of that Chargor's assets specified in that notice) if:

(a) an Event of Default is continuing; or

(b) the Security Agent considers those assets to be in danger of being seized or sold under any form of distress, attachment, execution or other legal process or to be otherwise in jeopardy.

2.10.3 Subject to sub-clause 2.10.4, the floating charge created by this Clause 2.10 may not be converted into a fixed charge solely by reason of:

(a) the obtaining of a moratorium; or

(b) anything done with a view to obtaining a moratorium, under Part AI of the Insolvency Act 1986.

2.10.4 Sub-clause 2.10.3 does not apply in respect of any floating charge referred to in subsection (4) of section A52 of Part AI of the Insolvency Act 1986.

2.10.5 The floating charge created by this Clause 2.10 will (in addition to the circumstances when this may occur under the general law) automatically convert into a fixed charge over all of the Chargors' assets if an administrator is appointed or the Security Agent receives notice of an intention to appoint an administrator.

2.10.6 The floating charge created by this Clause 2.10 is a qualifying floating charge for the purpose of paragraph 14 of Schedule B1 to the Insolvency Act 1986.

3 GENERAL COVENANTS

3.1 Security

Except as expressly allowed under the Facility Agreement or this Deed, each Chargor must not create or permit to subsist any Security on any Security Asset.

3.2 Disposals

Except as expressly allowed under the Facility Agreement or this Deed, each Chargor must not enter into a single transaction or a series of transactions (whether related or not and whether voluntary or involuntary) to dispose of all or any part of any Security Asset.

3.3 Preservation of Security Assets

No Chargor shall do, or permit to be done, any act or thing that would or might depreciate, jeopardise or otherwise prejudice the security held by the Security Agent, or materially diminish the value of any of the Security Assets or the effectiveness of the security created by this Deed.

3.4 Enforcement of Rights

Each Chargor shall use reasonable endeavours to:

3.4.1 procure the prompt observance and performance by the relevant counterparty to any agreement or arrangement with that Chargor and forming part of the Security Assets of the covenants and other obligations imposed on such counterparty; and

3.4.2 enforce any rights and institute, continue or defend any proceedings relating to any of the Security Assets that the Security Agent may require from time to time.

4 LAND

4.1 Acquisitions

If a Chargor acquires any freehold or leasehold property in England and Wales in accordance with the Facility Agreement after the date of this Deed it must:

4.1.1 notify the Security Agent immediately;

4.1.2 immediately on request by the Security Agent and at the cost of that Chargor, execute and deliver to the Security Agent a legal mortgage over that property in favour of the Security Agent in any form which the Security Agent may require (but on terms which are no more onerous than under this Deed); and

(a) if the title to that freehold or leasehold property is registered at the Land Registry or required to be so registered, give the Land Registry written notice of this Security; and

(b) if applicable, ensure that this Security is correctly noted against that title in the title register at the Land Registry.

4.2 Land Registry

Each Chargor consents to a restriction in the following terms being entered into on the Register of Title relating to any Mortgaged Property registered at the Land Registry:

"No disposition of the registered estate by the proprietor of the registered estate is to be registered without a written consent signed by the proprietor for the time being of the charge dated [ ] in favour of [ ] referred to in the charges register or their conveyancer. (Standard Form P)".

4.3 Deposit of title deeds

Each Chargor must immediately:

4.3.1 deposit with the Security Agent all deeds and documents necessary to show good and marketable title to any property referred to in Clause 4.1 *(Acquisitions)* (the **"Title Documents"**);

4.3.2 procure that the Title Documents are held at the applicable Land Registry to the order of the Security Agent; or

4.3.3 procure that the Title Documents are held to the order of the Security Agent by a firm of solicitors approved by the Security Agent for that purpose.

5 INVESTMENTS

5.1 Deposit

Each Chargor must promptly:

5.1.1 deposit with the Security Agent, or as the Security Agent may direct, all certificates and other documents of title or evidence of ownership in relation to its Investments; and

5.1.2 execute and deliver to the Security Agent all share transfers and other documents which may be requested by the Security Agent in order to enable the Security Agent or its nominees to be registered as the owner of or otherwise obtain a legal title to its Investments.

5.2 Calls

5.2.1 Each Chargor must pay all calls or other payments due and payable in respect of any of its Investments in accordance with the Facility Agreement.

5.2.2 If a Chargor fails to do so, the Security Agent may pay the calls or other payments in respect of any of its Investments on behalf of that Chargor. A Chargor must immediately on request reimburse the Security Agent for any payment made by the Security Agent under this Clause 5.2.

5.3 Other obligations in respect of Investments

5.3.1 Each Chargor must promptly send a copy to the Security Agent of, and comply with all requests for, information which is within its knowledge and which are made under any law or regulation or any similar provision contained in any articles of association or other constitutional document, or by any listing or other authority, relating to any of its Investments. If it fails to do so, the Security Agent may elect to provide such information as it may have on behalf of the Chargor.

5.3.2 Each Chargor must comply with all other conditions and obligations assumed by it in respect of any of its Investments.

5.3.3 The Security Agent is not obliged to:

(a) perform any obligation of a Chargor;

(b) make any payment;

(c) make any enquiry as to the nature or sufficiency of any payment received by it or a Chargor; or

(d) present or file any claim or take any other action to collect or enforce the payment of any amount to which it may be entitled under this Deed,

in respect of any of its Investments.

5.4 Voting rights

5.4.1 Before this Security becomes enforceable the voting rights, powers and other rights in respect of its Investments will be exercised:

(a) by the relevant Chargor; or

(b) if exercisable by the Security Agent, in any manner which the relevant Chargor may direct the Security Agent in writing.

5.4.2 Each Chargor must indemnify the Security Agent against any loss or liability incurred by the Security Agent as a consequence of the Security Agent acting in respect of any of its Investments as permitted by this Deed on the direction of that Chargor.

5.4.3 After this Security has become enforceable, the Security Agent may exercise (in the name of the relevant Chargor and without any further consent or authority on the part of that Chargor) any voting rights and any powers or rights which may be exercised by the legal or beneficial owner of any Investment, any person who is the holder of any Investment or otherwise.

6 CENTRAL FUNDS ACCOUNT

6.1 The Borrower shall not:

6.1.1 make any request or demand for repayment or payment of all or any part of the any amount standing to the credit of the Central Funds Account, unless permitted in accordance with the Facility Agreement;

6.1.2 withdraw or transfer all or any part of any amount standing to the credit of the Central Funds Account unless permitted in accordance with the Facility Agreement;

6.1.3 permit or agree to any variation of the rights attaching to the Central Funds Account or close the Central Funds Account unless permitted in accordance with the Facility Agreement; or

6.1.4 do, or permit to be done, any act or thing that would or might depreciate, jeopardise or otherwise prejudice the security held by the Security Agent, or materially diminish the value of any of the Security Assets or the effectiveness of the security created by this Deed (including, without limitation, closing the Central Funds Account).

6.2 The Borrower shall on or around the date of this Deed serve a notice of charge, substantially in the form of Part 1 of Schedule 2 *(Forms of Letter for Account Bank),* on the person with whom the Central Funds Account is maintained by and use its best endeavours to ensure that such person acknowledges the notice, substantially in the form of Part 2 of Schedule 2 *(Forms of Letter for Account Bank).* The Borrower shall, promptly (and in any event within five (5) Business Days) on receipt of such acknowledgement, provide a copy of the same to the Security Agent.]

7 BOOK DEBTS

7.1 Each Chargor must supply the Security Agent or Receiver with copies of each Intra-Group Loan Agreement and any document evidencing a Velocity Loan requested by the Security Agent or Receiver.

7.2 After this Security has become enforceable, the Security Agent or Receiver may exercise, without any further consent or authority on the part of any Chargor and irrespective of any direction given by a Chargor, any of the Chargor's rights under any Intra-Group Loan Agreement or document evidencing a Velocity Loan.

8 NOTICES TO BE GIVEN BY THE CHARGORS

8.1 Each Chargor shall as so requested by the Security Agent from time to time:

8.1.1 serve a notice of assignment, substantially in the form of Part 1 of Schedule 2 (*Forms of Letter for Insurers*), on each counterparty to an insurance policy and use reasonable endeavours to ensure that such counterparty acknowledges that notice, substantially in the form of Part 2 of Schedule 3 (*Forms of Letter for Insurers*); and

8.1.2 serve a notice of assignment or charge (as applicable), substantially in the form of Part 1 of Schedule 5 (*Forms of Letter for Other Contracts*), on each counterparty to a contract listed in Clause 2.8 (*Other contracts*) and use reasonable endeavours to ensure that each such party acknowledges that notice, substantially in the form of Part 2 of Schedule 5 (*Forms of Letter for Other Contracts*).

Each Chargor shall, promptly (and in any event within five (5) Business Days) on receipt of each such acknowledgement referred to in this paragraph (a), provide a copy of the same to the Security Agent.

8.2 The relevant Chargors that are a party to a Velocity Loan shall on or around the date of this Deed serve a notice of assignment, substantially in the form of Part 1 of Schedule 5 (*Forms of Letter for Other Contracts*), on Velocity and use its best endeavours to ensure that Velocity acknowledges the notice, substantially in the form of Part 2 of Schedule 5 (*Forms of Letter for Other Contracts*). Each relevant Chargor shall, promptly (and in any event within five Business Days) on receipt of each such acknowledgement, provide a copy of the same to the Security Agent.

8.3 Each Chargor shall promptly:

8.3.1 notify the Security Agent upon opening any bank account; and

8.3.2 following the date of this Deed (or in relation to any account opened after the date of this Deed, promptly following opening such account) serve a notice of charge, substantially in the form of Part 1 of Schedule 2 (*Forms of Letter for Account Bank*), on each a person with whom a bank account is maintained by any Chargor (each such person being an "**Account Bank**") and use reasonable endeavours to ensure that each Account Bank acknowledges the notice, substantially in the form of Part 2 of Schedule 2 (*Forms of Letter for Account Bank*).

9 WHEN SECURITY BECOMES ENFORCEABLE

9.1 Event of Default

This Security will become immediately enforceable if an Event of Default occurs and is continuing and enforcement of the Security shall be subject to the terms of the Facility Agreement.

9.2 Discretion

After this Security has become enforceable, the Security Agent may, in its absolute discretion, enforce all or any part of this Security in any manner it sees fit, and take possession of and hold or dispose of all or any part of the Security Assets or as instructed in accordance with the Facility Agreement.

9.3 Statutory powers

The power of sale and other powers conferred by section 101 of the Act, as amended by this Deed, will be immediately exercisable at any time after this Security has become enforceable.

10 ENFORCEMENT OF SECURITY

10.1 General

10.1.1 For the purposes of all powers implied by statute, the Secured Liabilities are deemed to have become due and payable on the date of this Deed.

10.1.2 Section 103 of the Act (restricting the power of sale) and section 93 of the Act (restricting the right of consolidation) do not apply to this Security.

10.1.3 The statutory powers of leasing conferred on the Security Agent are extended so as to authorise the Security Agent to lease, make agreements for leases, accept surrenders of leases and grant options as the Security Agent may think fit and without the need to comply with any provision of section 99 or section 100 of the Act.

10.2 No liability as mortgagee in possession

Neither the Security Agent nor any Receiver will be liable, by reason of entering into possession of a Security Asset, to account as mortgagee in possession or for any loss on realisation or for any default or omission for which a mortgagee in possession might be liable.

10.3 Privileges

The Security Agent and each Receiver is entitled to all the rights, powers, privileges and immunities conferred by the Act on mortgagees and receivers duly appointed under the Act, except that section 103 of the Act does not apply.

10.4 Protection of third parties

No person (including a purchaser) dealing with the Security Agent or a Receiver or its or his/her agents will be concerned to enquire:

10.4.1 whether the Secured Liabilities have become payable;

10.4.2 whether any power which the Security Agent or a Receiver is purporting to exercise has become exercisable or is being properly exercised;

10.4.3 whether any money remains due under the Finance Documents; or

10.4.4 how any money paid to the Security Agent or to that Receiver is to be applied.

10.5 Redemption of prior mortgages

10.5.1 At any time after this Security has become enforceable, the Security Agent may:

(a) redeem any prior Security against any Security Asset; and/or

(b) procure the transfer of that Security to itself; and/or

(c) settle and pass the accounts of the prior mortgagee, chargee or encumbrancer; any accounts so settled and passed will be, in the absence of manifest error, conclusive and binding on the Chargors.

10.5.2 The Chargors must pay to the Security Agent, immediately on demand, the costs and expenses incurred by the Security Agent in connection with any such redemption and/or transfer, including the payment of any principal or interest.

10.6 Contingencies

If this Security is enforced at a time when no amount is due under the Finance Documents but at a time when amounts may or will become due, the Security Agent (or a Receiver) may pay the proceeds of any recoveries effected by it into a suspense account or other account selected by it.

10.7 Financial collateral

10.7.1 To the extent that the Security Assets constitute "financial collateral" and this Deed and the obligations of the Chargors under this Deed constitute a "security financial collateral arrangement" (in each case, for the purpose of and as defined in the Financial Collateral Arrangements (No. 2) Regulations 2003), the Security Agent will have the right after this Security has become enforceable to appropriate all or any part of that financial collateral in or towards the satisfaction of the Secured Liabilities.

10.7.2 Where any financial collateral is appropriated:

(a) if it is listed or traded on a recognised exchange, its value will be taken as being the value at which it could have been sold on the exchange on the date of appropriation; or

(b) in any other case, its value will be such amount as the Security Agent reasonably determines having taken into account advice obtained by it from an independent commercial property adviser, investment bank or accountancy firm of national standing selected by it,

and each Finance Party will give credit for the proportion of the value of the financial collateral appropriated to its use.

11 RECEIVER

11.1 Appointment of Receiver

11.1.1 Except as provided below, the Security Agent may appoint any one or more persons to be a Receiver of all or any part of the Security Assets if:

(a) this Security has become enforceable; or

(b) a Chargor so requests to the Security Agent at any time.

11.1.2 Any appointment under paragraph (a) above may be by deed, under seal or in writing under its hand.

11.1.3 Except as provided below, any restriction imposed by law on the right of a mortgagee to appoint a Receiver (including under section 109(1) of the Act) does not apply to this Deed.

11.1.4 The Security Agent is not entitled to appoint a Receiver solely as a result of the obtaining of a moratorium (or anything done with a view to obtaining a moratorium) under Part AI of the Insolvency Act 1986 other than in respect of a floating charge referred to in subsection (4) of section A52 of Part AI of the Insolvency Act 1986.

11.1.5 The Security Agent may not appoint an administrative receiver (as defined in section 29(2) of the Insolvency Act 1986) over the Security Assets if the Security Agent is prohibited from so doing by section 72A of the Insolvency Act 1986 and no exception to the prohibition on appointing an administrative receiver applies.

11.2 Removal

The Security Agent may by writing under its hand (subject to any requirement for an order of the court in the case of an administrative receiver) remove any Receiver appointed by it and may, whenever it thinks fit, appoint a new Receiver in the place of any Receiver whose appointment may for any reason have terminated.

11.3 Remuneration

The Security Agent may fix the remuneration of any Receiver appointed by it and the maximum rate specified in section 109(6) of the Act will not apply.

11.4 Agent of the Chargors

11.4.1 A Receiver will be deemed to be the agent of the Chargors for all purposes and accordingly will be deemed to be in the same position as a Receiver duly appointed by a mortgagee under the Act. The Chargors alone are responsible for any contracts, engagements, acts, omissions, defaults and losses of a Receiver and for any liabilities incurred by a Receiver.

11.4.2 No Secured Party will incur any liability (either to a Chargor or to any other person) by reason of the appointment of a Receiver or for any other reason.

11.5 Relationship with Security Agent

To the fullest extent allowed by law, any right, power or discretion conferred by this Deed (either expressly or impliedly) or by law on a Receiver may after this Security becomes enforceable be exercised by the Security Agent in relation to any Security Asset without first appointing a Receiver and notwithstanding the appointment of a Receiver.

12 POWERS OF RECEIVER

12.1 General

12.1.1 A Receiver has all of the rights, powers and discretions set out below in this Clause 12 in addition to those conferred on it by any law. This includes:

(a) in the case of an administrative receiver, all the rights, powers and discretions conferred on an administrative receiver under the Insolvency Act 1986; and

(b) otherwise, all the rights, powers and discretions conferred on a receiver (or a receiver and manager) under the Act and the Insolvency Act 1986.

12.1.2 If there is more than one Receiver holding office at the same time, each Receiver may (unless the document appointing him/her states otherwise) exercise all of the powers conferred on a Receiver under this Deed individually and to the exclusion of any other Receiver.

12.2 Possession

A Receiver may take immediate possession of, get in and realise any Security Asset.

12.3 Carry on business

A Receiver may carry on any business of a Chargor in any manner he/she thinks fit.

12.4 Employees

12.4.1 A Receiver may appoint and discharge managers, officers, agents, accountants, servants, workmen and others for the purposes of this Deed upon such terms as to remuneration or otherwise as he/she thinks fit.

12.4.2 A Receiver may discharge any person appointed by a Chargor.

12.5 Borrow money

A Receiver may raise and borrow money either unsecured or on the security of any Security Asset either in priority to this Security or otherwise and generally on any terms and for whatever purpose which he/she thinks fit.

12.6 Sale of assets

12.6.1 A Receiver may sell, exchange, convert into money and realise any Security Asset by public auction or private contract and generally in any manner and on any terms which he/she thinks fit.

12.6.2 The consideration for any such transaction may consist of cash or non-cash consideration and any such consideration may be payable in a lump sum or by instalments spread over any period which he/she thinks fit.

12.6.3 Fixtures, other than landlord's fixtures, may be severed and sold separately from the property containing them without the consent of the relevant Chargor.

12.7 Leases

A Receiver may let any Security Asset for any term and at any rent (with or without a premium) which he/she thinks fit and may accept a surrender of any lease or tenancy of any Security Asset on any terms which he/she thinks fit (including the payment of money to a lessee or tenant on a surrender).

12.8 Compromise

A Receiver may settle, adjust, refer to arbitration, compromise and arrange any claim, account, dispute, question or demand with or by any person who is or claims to be a creditor of a Chargor or relating in any way to any Security Asset.

12.9 Legal actions

A Receiver may bring, prosecute, enforce, defend and abandon any action, suit or proceedings in relation to any Security Asset which he/she thinks fit.

12.10 Receipts

A Receiver may give a valid receipt for any moneys and execute any assurance or thing which may be proper or desirable for realising any Security Asset.

12.11 Subsidiaries

A Receiver may form a Subsidiary of a Chargor and transfer to that Subsidiary any Security Asset.

12.12 Delegation

A Receiver may delegate his/her powers in accordance with this Deed.

12.13 Lending

A Receiver may lend money or advance credit to any person.

12.14 Protection of assets

A Receiver may:

12.14.1 effect any repair or insurance and do any other act which a Chargor might do in the ordinary conduct of its business to protect or improve any Security Asset;

12.14.2 commence and/or complete any building operation; and

12.14.3 apply for and maintain any planning permission, building regulation approval or any other Authorisation,

in each case as he/she thinks fit.

12.15 Other powers

A Receiver may:

12.15.1 do all other acts and things which he/she may consider necessary or desirable for realising any Security Asset or incidental or conducive to any of the rights, powers or discretions conferred on a Receiver under or by virtue of this Deed or law;

12.15.2 exercise in relation to any Security Asset all the powers, authorities and things which he/she would be capable of exercising if he/she were the absolute beneficial owner of that Security Asset; and

12.15.3 use the name of a Chargor for any of the above purposes.

13 APPLICATION OF PROCEEDS

All amounts from time to time received or recovered by the Security Agent or any Receiver pursuant to the terms of this Deed or in connection with the realisation or enforcement of all or part of this Security will be held by the Security Agent and applied in accordance with the Facility Agreement and Security Trust Deed. This Clause 13:

13.1.1 is subject to the payment of any claims having priority over this Security; and

13.1.2 does not prejudice the right of any Secured Party to recover any shortfall from a Chargor.

14 EXPENSES AND INDEMNITY

The Chargors must:

14.1.1 immediately on demand pay to each Secured Party the amount of all costs and expenses (including legal fees) incurred by that Secured Party in connection with this Deed including any arising from any actual or alleged breach by any person of any law or regulation; and

14.1.2 keep each Secured Party indemnified against any failure or delay in paying those costs or expenses.

15 DELEGATION

15.1 Power of Attorney

The Security Agent or any Receiver may, at any time, delegate by power of attorney or otherwise to any person for any period all or any right, power, authority or discretion exercisable by it under this Deed.

15.2 Terms

Any such delegation may be made upon any terms and conditions (including the power to sub-delegate) and subject to any restrictions that the Security Agent or that Receiver (as the case may be) may, in its discretion, think fit in the interests of the Secured Parties.

15.3 Liability

Neither the Security Agent nor any Receiver shall be bound to supervise, or be in any way responsible for any damages, costs or losses incurred by reason of any misconduct, omission or default on the part of, any such delegate or sub-delegate.

16 FURTHER ASSURANCES

16.1.1 Each Chargor must promptly, at its own expense, take whatever action the Security Agent or a Receiver may require for:

(a) creating, perfecting or protecting any security over any Security Asset; or

(b) facilitating the realisation of any Security Asset, or the exercise of any right, power, authority or discretion exercisable, by the Security Agent or any Receiver or any of their respective delegates or sub-delegates in respect of any Security Asset.

16.1.2 The action that may be required under paragraph (a) above includes:

(a) the execution of any mortgage, charge, transfer, conveyance, assignment or assurance of any asset, whether to the Security Agent or to its nominees; or

(b) the giving of any notice, order or direction and the making of any filing or registration,

which, in any such case, the Security Agent may consider necessary.

17 POWER OF ATTORNEY

17.1 Subject to Clause 17.2, each Chargor, by way of security, irrevocably and severally appoints the Security Agent, each Receiver and any of their respective delegates or sub-delegates to be its attorney with the full power and authority of that Chargor to execute, deliver and perfect all deeds, instruments and other documents in its name and otherwise on its behalf and to do or cause to be done all acts and things, in each case which may be required or which any attorney may in its absolute discretion deem necessary for carrying out any obligation of that Chargor under or pursuant to this Deed or generally for enabling the Security Agent or any Receiver to exercise the respective powers conferred on them under this Deed or by law. Each Chargor ratifies and confirms whatever any attorney does or purports to do under its appointment under this Clause 17.

17.2 The power of attorney in Clause 17.1 shall take effect immediately, but the powers shall only be exercisable:

17.2.1 upon this Security becoming enforceable; or

17.2.2 to the extent that an action contemplated by the Security Agent is an action that the relevant Chargor ought or has agreed to execute or do under this Deed, where the relevant Chargor has failed to take such action in three (3) Business Days of the Security Agent requiring the Chargor to do so in writing

18 MISCELLANEOUS

18.1 Continuing Security

This Security is a continuing security and will extend to the ultimate balance of the Secured Liabilities regardless of any intermediate payment or discharge in whole or in part.

18.2 Tacking

Each Lender must perform its obligations under the Facility Agreement (including any obligation to make available further advances).

18.3 New Accounts

18.3.1 If any subsequent charge or other interest affects any Security Asset, a Secured Party may open a new account with a Chargor.

18.3.2 If that Secured Party does not open a new account, it will nevertheless be treated as if it had done so at the time when it received or was deemed to have received notice of that charge or other interest.

18.3.3 As from that time all payments made to that Secured Party will be credited or be treated as having been credited to the new account and will not operate to reduce any Secured Liability.

18.4 Time deposits

Without prejudice to any right of set-off any Secured Party may have under any other Finance Document or otherwise, if any time deposit matures on any account a Chargor has with any Secured Party within the Security Period when:

18.4.1 this Security has become enforceable; and

18.4.2 no Secured Liability is due and payable,

that time deposit will automatically be renewed for any further maturity which that Secured Party considers appropriate.

18.5 Notice to Chargors

This Deed constitutes notice in writing to each Chargor of any charge or assignment of a debt owed by a Chargor to any Obligor (including in relation to any Intra-Group Debt).

19 RELEASE

At the end of the Security Period, the Finance Parties must, at the request and cost of the Chargors, take whatever action is necessary to release its Security Assets from this Security.

20 ASSIGNMENT AND TRANSFER

20.1 Assignment by the Security Agent

20.1.1 The Security Agent shall not assign or transfer its rights under this Deed other than in accordance with the Facility Agreement and unless it has first obtained the prior written consent of the Premier League or, if applicable, the EFL, where it is required to do so under the Premier League Rules or the EFL Rules as relevant.

20.1.2 The Security Agent may disclose to any actual or proposed assignee, transferee or sub-participant any information in its possession that relates to the Chargors, the Security Assets and this Deed that the Security Agent considers appropriate in accordance with the terms of the Facility Agreement.

20.2 Assignment by the Chargors

No Chargor may assign any of its rights, or transfer any of its rights or obligations, under this Deed.

21 NOTICES

Each notice under this Deed shall be given in accordance with the terms of the Facility Agreement.

22 GOVERNING LAW

This Deed and any non-contractual obligations arising out of or in connection with it are governed by English law.

23 ENFORCEMENT

23.1 The courts of England have exclusive jurisdiction to settle any dispute arising out of or in connection with this Deed (including a dispute relating to the existence, validity or termination of this Agreement or any non-contractual obligation arising out of or in connection with this Agreement) (a "**Dispute**").

23.2 The Parties agree that:

23.2.1 the courts of England are the most appropriate and convenient courts to settle Disputes and accordingly no Party will argue to the contrary; and

23.2.2 in the event of any Disputes, a Secured Party shall not be responsible or liable to any Chargor, or any other person for any special, indirect, consequential, incidental or punitive damages other than a result of gross negligence or wilful misconduct of a Secured Party.

23.3 Notwithstanding paragraphs (a) and (b) above, the Security Agent shall not be prevented from taking proceedings relating to a Dispute in any other courts with jurisdiction. To the extent allowed by law, the Security Agent may take concurrent proceedings in any number of jurisdictions.

THIS DEED has been executed and delivered as a deed on the date stated at the beginning of this Deed.

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SCHEDULE 1

THE CHARGORS

Name of Original Guarantor	Registration number (or equivalent, if any)	Original Jurisdiction
Burnley Football & Athletic Company, Limited(The)	00054222	England and Wales
Burnley FC Holdings Limited	08335231	England and Wales
Longside Properties Limited	05202619	England and Wales
Burnley FC Women Limited	13192796	England and Wales

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SCHEDULE 2

REAL PROPERTY

Property Description	Interest	Title Number	Chargor
Leasehold land at Turf Moor, Harry Potts Way, Burnley BB10 4BX	Leasehold	LAN39180	Burnley Football & Athletic Company, Limited(The)
The Leisure Centre, Harry Potts Way Burnley BB10 4BX	Leasehold	LAN119765	Burnley Football & Athletic Company, Limited(The)
Home Farm, Habergham Drive Burnley BB12 8UA	Leasehold	LAN32986	Burnley Football & Athletic Company, Limited(The)
Turf Moor, Harry Potts Way, Burnley, BB10 4BX	Freehold	LAN33148	Longside Properties Limited
The Leisure Centre, Harry Potts Way, Burnley, BB10 4BX	Freehold	LA925928	Longside Properties Limited
Home Farm, Habergham Drive, Burnley BB12 8UA	Freehold	LA934999	Longside Properties Limited

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SCHEDULE 3
FORMS OF LETTER FOR ACCOUNT BANK

PART 1
NOTICE TO ACCOUNT BANK

To: [*Account Bank*]

Copy: Fasanara Capital Ltd (as Security Agent as defined below)

[Date]

Dear Sirs,

Security Agreement dated _____ January 2025 between [Chargor] and Fasanara Capital Ltd as Security Agent (the "Security Agreement")

This letter constitutes notice to you that under the Security Agreement we have charged (by way of a first fixed charge) in favour of Fasanara Capital Ltd (as trustee for the Secured Parties as referred to in the Security Agreement, the **"Security Agent")** all our rights in respect of any account, and any amount standing to the credit of any account, maintained by us with you (the **"Accounts").**

We irrevocably instruct and authorise you to:

1 disclose to the Security Agent any information relating to any Account requested from you by the Security Agent;

2 comply with the terms of any written notice or instruction relating to any Account received by you from the Security Agent;

3 hold all sums standing to the credit of any Account to the order of the Security Agent; and

4 [pay or release any sum standing to the credit of any such Account in accordance with the written instructions of the Security Agent.]

[We are not permitted to withdraw any amount from any Account without the prior written consent of the Security Agent.]

[We are permitted to withdraw any amount from the Accounts for any purpose unless and until you receive a notice from the Security Agent to the contrary stating that we are no longer permitted to withdraw any amount from the Accounts without its consent. If and from the date on which you receive any such notice, we will not be permitted to withdraw any amount from the Accounts without the prior written consent of the Security Agent.]

We acknowledge that you may comply with the instructions in this letter without any further permission from us. The instructions in this letter may not be revoked or amended without the prior written consent of the Security Agent.

This letter and any non-contractual obligations arising out of or in connection with it are governed by English law.

Please confirm your agreement to the above by sending the attached acknowledgement to the Security Agent at [*address*] with a copy to us.

Yours faithfully

Docusign Envelope ID: 01CE70E3-83C7-4EDF-B9F9-3968C47D0BAC

PART 2
ACKNOWLEDGEMENT OF ACCOUNT BANK

To: Fasanara Capital Ltd (as Security Agent)

Copy: [*Chargor*]

[*Date*]

Dear Sirs,

Security Agreement dated _____ January 2025 between [*Chargor*] and Fasanara Capital Ltd as Security Agent (the "Security Agreement")

We confirm receipt from [*Chargor*] (the **"Chargor")** of a notice dated [ ] (the **"Notice")** of a charge upon the terms of the Security Agreement over all the rights of the Chargor to any amount standing to the credit of any of the Chargor's accounts with us (the **"Accounts").**

We confirm that we:

1 accept the instructions contained in the Notice and agree to comply with the Notice;

2 have not received notice of any prior security over, or the interest of any third party in, any Account [*other than MGG Notice*];

3 have neither claimed nor exercised, nor will claim or exercise, any security interest, set-off, counter-claim or other right in respect of any Account;

4 [will not permit any amount to be withdrawn from any Account without your prior written consent]; and

5 will comply with any notice we may receive from the Security Agent in respect of the Accounts.

The Accounts maintained with us are:
[*Specify accounts and account numbers*]

This letter and any non-contractual obligations arising out of or in connection with it are governed by English law.

Yours faithfully,

(Authorised signatory)
[Account Bank]

Docusign Envelope ID: 01CE70E3-83C7-4EDF-B9F9-3968C47D0BAC

SCHEDULE 4
FORMS OF LETTER FOR INSURERS

PART 1
NOTICE TO INSURER

To: [*Insurer*]

Copy: Fasanara Capital Ltd (as Security Agent as defined below)

[*Date*]

Dear Sirs,

Security Agreement dated _____ January 2025 between [Chargor] and Fasanara Capital Ltd as Security Agent (the "Security Agreement")

This letter constitutes notice to you that under the Security Agreement we have assigned absolutely, subject to a proviso for re-assignment on redemption, to Fasanara Capital Ltd (as trustee for the Secured Parties as referred to in the Security Agreement, the **"Security Agent")** all our rights in respect of [*insert details of contract of insurance*] (the "**Insurance**").

We confirm that:

1 we will remain liable under the Insurance to perform all the obligations assumed by us under the Insurance; and

2 none of the Security Agent, its agents, any receiver or any other person will at any time be under any obligation or liability to you under or in respect of the Insurance (unless, and to the extent, otherwise expressly provided for in the Insurance).

We will also remain entitled to exercise all our rights, powers and discretions under the Insurance, and you should continue to give notices and make payments under the Insurance to us (unless, and to the extent, otherwise expressly provided for in the Insurance or in any insurer letter you may have issued to the Security Agent in respect of the Insurance), unless and until you receive notice from the Security Agent to the contrary stating that the security under the Security Agreement has become enforceable. In this event, all the rights, powers and discretions will be exercisable by, and notices must be given and payments must be made to, the Security Agent or as it directs (unless, and to the extent, otherwise expressly provided for in the Insurance or in any insurer letter you may have issued to the Security Agent in respect of the Insurance).

We irrevocably instruct and authorise you to disclose to the Security Agent any information relating to the Insurance requested from you by the Security Agent.

The instructions in this letter may not be revoked or amended without the prior written consent of the Security Agent.

This letter and any non-contractual obligations arising out of or in connection with it are governed by English law.

Please acknowledge receipt of this letter by sending the attached acknowledgement to the Security Agent at [*address*] with a copy to us.

Yours faithfully,

(Authorised signatory)

[Chargor].

Docusign Envelope ID: 01CE70E3-83C7-4EDF-B9F9-3968C47D0BAC

PART 2
ACKNOWLEDGEMENT OF INSURER

To: Fasanara Capital Ltd (as Security Agent)

Copy: [*Chargor*]

[*Date*]

Dear Sirs,

Security Agreement dated _____ January 2025 between [Chargor] and Fasanara Capital Ltd as Security Agent (the "Security Agreement")

We confirm receipt from [*Chargor*] (the "**Chargor**") of a notice dated [ ] (the **"Notice"**) of an assignment on the terms of the Security Agreement of all the Chargor's rights in respect of [*insert details of the contract of insurance*] (the **"Insurance"**).

We confirm that we:

1 accept the instructions contained in the Notice and agree to comply with the Notice; and

2 will give notices and make payments under the Insurance as directed in the Notice.

This letter and any non-contractual obligations arising out of or in connection with it are governed by English law.

Yours faithfully,

(Authorised signatory)

[Insurer]

Docusign Envelope ID: 01CE70E3-83C7-4EDF-B9F9-3968C47D0BAC

SCHEDULE 5
FORMS OF LETTER FOR OTHER CONTRACTS

PART 1
NOTICE TO COUNTERPARTY

To: [*Contract Counterparty*]

Copy: Fasanara Capital Ltd (as Security Agent as defined below)

[*Date*]

Dear Sirs,

Security Agreement dated _____ **January 2025** between [Chargor] and Fasanara Capital Ltd as Security Agent (the "Security Agreement")

This letter constitutes notice to you that under the Security Agreement we have [assigned absolutely, subject to a proviso for re-assignment on redemption,]/[charged by way of a first fixed charge][1]. to [Security Agent] (as trustee for the Secured Parties as referred to in the Security Agreement, the **"Security Agent")** all our rights in respect of [insert details of contract] (the **"Contract").**

We confirm that:

1. we will remain liable under the Contract to perform all the obligations assumed by us under the Contract; and

1.1 none of the Security Agent, its agents, any receiver or any other person will at any time be under any obligation or liability to you under or in respect of the Contract.

We will also remain entitled to exercise all our rights, powers and discretions under the Contract, and you should continue to give notices and make payments under the Contract to us, unless and until you receive notice from the Security Agent to the contrary stating that the security under the Security Agreement has become enforceable. In this event, all the rights, powers and discretions will be exercisable by, and notices must be given and payments must be made to, the Security Agent or as it directs.

We irrevocably instruct and authorise you to disclose to the Security Agent any information relating to the Contract requested from you by the Security Agent.

The instructions in this letter may not be revoked or amended without the prior written consent of the Security Agent.

This letter and any non-contractual obligations arising out of or in connection with it are governed by English law.

Please acknowledge receipt of this letter by sending the attached acknowledgement to the Security Agent at [address] with a copy to us.

Yours faithfully,

---

[1] Delete as applicable

PART 2
ACKNOWLEDGEMENT OF COUNTERPARTY

To: Fasanara Capital Ltd (as Security Agent)

Copy: [*Chargor*]

[*Date*]

Dear Sirs,

Security Agreement dated _____ January 2025 between [Chargor] and Fasanara Capital Ltd as Security Agent (the "Security Agreement")

We confirm receipt from [Chargor] (the "**Chargor**") of a notice dated [ ] (the "**Notice**") of [an assignment]/ [fixed charge][2] on the terms of the Security Agreement of all the Chargor's rights in respect of [insert details of the contract] (the "**Contract**").

We confirm that we:

1 accept the instructions contained in the Notice and agree to comply with the Notice; and

2 will give notices and make payments under the Contract as directed in the Notice.

This letter and any non-contractual obligations arising out of or in connection with it are governed by English law.

Yours faithfully,

(Authorised signatory)
[*Contract counterparty*]

[2] Delete as applicable

SIGNATURE PAGES

CHARGORS

Executed as a deed by)
BURNLEY FOOTBALL & ATHLETIC)
COMPANY LIMITED(THE))
acting by

Director [redacted]

Name (in BLOCK CAPITALS) Alan Pace

Title Chairman

In the presence of:

Witness signature [redacted]

Name (in BLOCK CAPITALS) ANDREW THOMPSON

Address [redacted]

Occupation Finance Director

Executed as a deed by)
BURNLEY FC HOLDINGS LIMITED)
acting by)

Director [redacted]

Name (in BLOCK CAPITALS) Alan Pace

Title Chairman

In the presence of:

Witness signature [redacted]

Name (in BLOCK CAPITALS) ANDREW THOMPSON

Address [redacted]

Occupation Finance Director

Executed as a deed by
LONGSIDE PROPERTIES LIMITED
acting by

Director [redacted]

Name (in BLOCK CAPITALS) Alan Pace

Title Chairman

In the presence of:

Witness signature [redacted]

Name (in BLOCK CAPITALS) ANDREW THOMPSON

Address [redacted]

Occupation Finance Director

Executed as a deed by)
BURNLEY FC WOMEN LIMITED)
acting by)

Director [redacted]

Name (in BLOCK CAPITALS) Alan Pace

Title Chairman

In the presence of:

Witness signature [redacted]

Name (in BLOCK CAPITALS) ANDREW THOMPSON

Address [redacted]

Occupation Finance Director

THE SECURITY AGENT

SIGNED for and on behalf of
FASANARA CAPITAL LTD [redacted]

Name: Francesco Filia

Title: Authorised signatory

FILE COPY

CERTIFICATE OF THE REGISTRATION OF A CHARGE

Company number: 54222

Charge code: 0005 422 2 0033

The Registrar of Companies for England and Wales hereby certifies that a charge dated 15th January 2025 and created by BURNLEY FOOTBALL & ATHLETIC COMPANY,LIMITED(THE) was delivered pursuant to Chapter A1 Part 25 of the Companies Act 2006 on 5th February 2025 .

Given at Companies House, Cardiff on 11th February 2025

Companies House

THE OFFICIAL SEAL OF THE REGISTRAR OF COMPANIES